

CV-23-005650 LOPEZ, RAFAEL, J vs NGB CONSTRUCTION INC – Plaintiff’s Motion to compel Defendant’s Compliance with the Belaire-West Notice Process and Production of Class Contact Information; Request for Sanctions – DENIED as moot. Monetary sanctions are ordered jointly and severally against Defendant and counsel in the amount of \$2,560.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: Both parties agree that the motion to compel is moot because Defendant produced the required contact information for all putative class members one day after Plaintiff filed the instant motion. Plaintiff argues that sanctions should be awarded because Defendant produced the information only after the motion to compel was filed. “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.030.) Here, Plaintiff contacted Defendant regarding approval of the Belaire-West Notice at least three times between March 27, 2026, and June 9, 2026. On June 12, 2026, Defendant confirmed it had no revisions to the Belaire-West Notice. Plaintiff subsequently requested the class member information on June 13, 2026, June 16, 2026, and June 25, 2026. In addition, the settlement administrator sent at least three emails asking when the class member information would be provided. Defendant did not respond to Plaintiff’s emails or the settlement administrator’s emails. On July 6, 2026, Plaintiff filed in the instant motion. One day later, Defendant produced the information. Plaintiff seeks attorney’s fees for 5.8 hours billed at a rate of \$581 per hour in connection with the instant motion together with the filing fee of \$60.00, for a total amount of \$3,429.80. Despite multiple follow-ups from Plaintiff, Defendant did not produce the class member information until Plaintiff filed its motion to compel. Defendant could have taken action earlier to assemble the information. The Court finds sanctions are warranted in this case and sets them at 5 hours at \$500 plus \$60 in filing fees. The Court is well aware that Plaintiff lacks clean hands on timeliness issues in this case. Nonetheless, the delays here, especially given the lack of contact and lack of information on the time required to assemble the information, are not excusable. Monetary sanctions in the reduced amount of \$2,560.00 against Defendant and its attorney of record, jointly and severally, are issued. Defendant and its attorney are to pay the sanctions to Melmed Law Group, P.C., within 20 days. Moving party to submit a proposed order within 5 court days that comports with this ruling.

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